

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amanda Harouche	Team: Team # 1	CCRB Case #: 201404961	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 05/16/2014 8:00 PM	Location of Incident: [REDACTED]	Precinct: 77	18 Mo. SOL 11/16/2015	EO SOL 11/16/2015	
Date/Time CV Reported Sun, 05/18/2014 10:35 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 05/18/2014 10:45 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. DT3 James Rivera	05027	925988	NARCBBN
2. DT3 Warren Rohan	02378	926018	NARCBBN
3. DT2 Waliur Rahman	06428	907113	NARCBBN
4. An officer			NARCBBN
5. Officers			NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A.DT2 Waliur Rahman	Abuse: Det. Waliur Rahman entered and searched § 87(2)(b) in Brooklyn.	[REDACTED]
B. Officers	Discourtesy: Officers spoke discourteously when entering § 87(2)(b) in Brooklyn.	[REDACTED]
C.DT3 Warren Rohan	Discourtesy: Det. Warren Rohan spoke discourteously to § 87(2)(b)	[REDACTED]
D.DT3 James Rivera	Discourtesy: Det. James Rivera spoke discourteously to § 87(2)(b)	[REDACTED]
E. An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	[REDACTED]

Case Summary

On May 16, 2014, § 87(2)(b) and § 87(2)(b)'s friend, § 87(2)(b) were inside of § 87(2)(b) in Brooklyn. § 87(2)(b) and § 87(2)(b) have resided in § 87(2)(b) for the past year. Around 8:00 p.m. on May 16, 2014, Narcotics Borough Brooklyn North officers executed a search warrant and entered the apartment with their guns pointed at the occupants and searched the apartment, damaging items in the process (**Allegation A**). § 87(2)(b) alleged that officers entered the apartment screaming, "Get the fuck down!" (**Allegation B**). § 87(2)(b) alleged that Det. Rivera and Det. Rohan said, "We got these motherfuckers" when they apprehended him (**Allegations C and D**). § 87(2)(b) also alleged that an officer said, "I'm going to tear this fucking apartment up if you don't tell me where the drugs and heroin is" (**Allegation E**). Narcotics, a scale and a stun gun were recovered from the apartment and § 87(2)(b) and § 87(2)(b) were subsequently arrested (encl. 4a-4s). Ultimately, § 87(2)(b) and § 87(2)(b) were charged with § 87(2)(b).

§ 87(2)(b) was only charged with § 87(2)(b).

§ 87(2)(g).

Mediation, Civil and Criminal Histories

This case was not eligible for mediation. As of May 22, 2014, neither § 87(2)(b) nor § 87(2)(b) have filed a notice of claim with the City of New York (encl.15a). [§ 87(2)(b)] [§§ 86(1)(2)&(4)] [§ 87(2)(g)].

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by both § 87(2)(b) and § 87(2)(b) (encl.2a-b).
- Det. Waliur Rahman has been a member of service for 20 years and has had a total of 14 complaints with the CCRB (encl.1a-b). Det. James Rivera has been a member of service for 14 years and has had a total of 7 cases with the CCRB (encl. 1c). Det. Warren Rohan has been a member of service for 14 years and has had a total of 5 cases with the CCRB (encl. 1d). § 87(2)(g).

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Explanation of Subject Officer Identification

§ 87(2)(g)

§ 87(2)(g)

Det. Rohan and Det. Rivera acknowledged being the first officers to encounter § 87(2)(b) and apprehend him. § 87(2)(g)

§ 87(2)(g)

Allegation A: Abuse of Authority – Det. Waliur Rahman entered and searched

§ 87(2)(b) **in Brooklyn.**

It is undisputed that officers entered and searched § 87(2)(b) on May 16, 2014. § 87(2)(g)

Allegation B: Discourtesy – Officers spoke discourteously when entering § 87(2)(b) in Brooklyn.

§ 87(2)(b) was the only person in the apartment that stated the officers said, “Get the fuck down” when they entered the apartment, however he was not able to describe the officers who said this because he just heard voices while he was in his bedroom. § 87(2)(g)

Allegation C: Discourtesy – Det. Warren Rohan spoke discourteously to § 87(2)(b)

Allegation D: Discourtesy – Det. James Rivera spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that the two officers that entered his bedroom first yelled, “Don’t move. Where are the drugs at? Where are the guns at? We got these motherfuckers!” while they pointed their guns at him. § 87(2)(b) and § 87(2)(b) did not allege this allegation during their statements.

Det. Rohan and Det. Rivera both acknowledged being the first two officers to encounter § 87(2)(b) in his bedroom but denied saying, “We got these mother fuckers” (encl. 5a-t, 6a-f).

§ 87(2)(g)

Allegation E: Discourtesy – An officer spoke discourteously to § 87(2)(b)

During his phone statement on May 21, 2014, § 87(2)(b) stated that an officer said, “I’m gonna give you ten seconds to tell me where the heroin and guns at or I’m going to tear this mother fucking house up.” During his interview at the CCRB on May 30, 2014, § 87(2)(b) provided the undersigned with a letter that he and § 87(2)(b) drafted on May 18, 2014 regarding the incident. In this letter he stated that the officers screamed, “We will tear this place up” and made no mention of a discourtesy being used with that statement. During his in-person statement at the CCRB on May 30, 2014, § 87(2)(b) stated, “I’m going to tear this fucking apartment up if you don’t tell me where the drugs and heroin is.”

§ 87(2)(b) stated that an officer came into the apartment and said “Tell me where the drugs at or we’re going to tear this place up.” § 87(2)(b) did not mention any version of this statement being used at all.

§ 87(2)(g)

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date